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TAB 15



Board of Education Report

File #: Rep-170-24/25, **Version:** 1

Proposition 39 Charter Facilities Compliance for the 2025-2026 School Year - Finding and Written Statements of Reasons Why Certain Charter Schools Cannot be Accommodated on a Single School Site, and Determination of Necessity to Move

January 14, 2025

**Office of the Chief Strategy Officer
Charter Schools Division**

Action Proposed:

Find and adopt, pursuant to California Education Code section 47614 and its implementing regulations (“Regulations”), a written statement of reasons why certain charter schools (as identified in the Attachments hereto) that submitted a Proposition 39 facilities request for the 2025-2026 school year cannot be accommodated on a single school site. Also determine it is necessary to move part of certain charter schools’ operations to an additional school site.

Background:

With the passage of Proposition 39 in November 2000, California Education Code section 47614 (“Proposition 39”) was amended with the intent that public school facilities should be shared fairly among all public-school pupils, including those in charter schools.

Proposition 39 requires that school districts make available to each charter school operating in the school district, facilities that will accommodate all of the charter school’s in-district students. The facilities must be in conditions “reasonably equivalent” to those in which the students would be accommodated if they were attending other public schools of the district, and the school district may not move a charter school unnecessarily. For each legally sufficient facilities request submitted by a charter school to a school district, the Regulations require the school district to deliver to the charter school a preliminary proposal on or before February 1st, and a final offer on or before April 1st.

The Board of Education has authorized the Superintendent (and/or their designee(s)) to issue preliminary proposals and final offers of space to all charter schools that submitted legally sufficient facilities requests, for the specific school year at issue, in accordance with requirements and timelines of Proposition 39 and the Regulations. (Board Report No. 098 - 18/19, dated October 2, 2018.)

The District is prepared to make preliminary proposals and final offers of space at operating District school sites to all eligible charter school applicants. While most preliminary proposals and final offers will accommodate charter schools at a single school site, some will accommodate certain charter schools (identified in the Attachments hereto) at more than one school site.

Section 11969.2, subdivision (d) of the Regulations provides that if a school district’s preliminary proposal or final offer of space does not accommodate a charter school at a single school site, the district’s governing board must first: (i) make a finding that the charter school cannot be accommodated at a single site; and (ii) adopt a written statement of the reasons explaining the finding.

The charter schools identified in the Attachments hereto cannot be accommodated at a single site because of several factors, such as: the large number of seats identified in the charter school's facilities request, the lack of available classrooms on a single site in the specific area requested by the charter school, multiple charter schools' requests for facilities at the same school site or in the same area, and/or the charter school's request to be located at more than one school site. In addition to design capacity and geographical limitations, and consistent with the Proposition 39 Charter Schools Co-Location Policy (Board Report No. 200 - 23/24, dated March 19, 2024), the District gave substantial consideration to District and charter students' safety and welfare, including, but not limited to, the disproportionate harm to District students that would result from forcibly dislocating children from their neighborhood schools to make room for non-neighborhood charter students.

Each Attachment hereto includes the following, as mandated by Proposition 39 and the Regulations:

- a) The process for staff's determination that a particular charter school cannot be accommodated on a single site. The process included, among other things, (1) a description of how the District determined available classroom inventory to meet a charter school's facilities request; (2) the rationale for making a multiple site offer; and (3) material considerations of student safety and welfare when balancing all available alternatives; and
- b) A recommended finding that a certain charter school could not be accommodated at a single site and written statement of reasons explaining the finding, and a determination that it is necessary to move part of the charter school's operations to an additional school site (if applicable).

Expected Outcomes:

As mandated by Proposition 39 and the Regulations, the Board will make findings and adopt written statements of the reasons why certain charter schools (as identified in the Attachments hereto) that submitted Proposition 39 facilities requests cannot be accommodated at a single school site for the 2025-2026 school year. The Board will also determine it is necessary to move part of certain charter schools' operations to an additional school site.

Board Options and Consequences:

If "no" vote, the District will not be in compliance with section 11969.2, subdivision (d) of the Regulations requiring the Board to make findings and adopt written statements as to why certain charter schools (as identified in the Attachments hereto) will receive Proposition 39 preliminary proposals and/or final offers accommodating them at more than one school site. The Board will also not determine if it is necessary to move part of certain charter schools' operations to an additional school site.

If "yes" vote, the District will be in compliance with section 11969.2, subdivision (d) of the Regulations requiring the Board to make findings and adopt written statements as to why certain charter schools (as identified in the Attachments hereto) will receive Proposition 39 preliminary proposals and/or final offers accommodating them at more than one school site. The Board will also determine it is necessary to move part of certain charter schools' operations to an additional school site.

Policy Implications:

This action does not change District policies.

Budget Impact:

This finding has no budget impact.

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Student Impact:

Pursuant to Proposition 39, public school facilities should be shared fairly among all public-school pupils, including those in charter schools. Through this proposed action, the Board is adhering to this mandate.

Equity Impact:

Not Applicable.

Issues and Analysis:

Pursuant to Proposition 39 and the Regulations, the District is required to make a preliminary proposal and final offer of space to each charter school that submitted a legally sufficient request for facilities. If a charter school cannot be accommodated at a single school site, the Board must first make a finding that the charter school cannot be accommodated at a single site and adopt a written statement of the reasons explaining the finding.

Attachments:

Documentation under the Appendix A & B listed below will be available for viewing at the following link: <
<https://drive.google.com/drive/folders/1fuo78XI3HpJFIrp-E1d_s--M5hBC7PJ4?usp=drive_link>>

Appendix A: Index of Charter Schools

Appendix B: Attachment for Each Charter School that Cannot be Accommodated on a Single School Site. Each Attachment includes two tabs:

- (a): Staff Report on the Deliberative Process for Determining Why the Charter School Cannot be Accommodated at a Single Site; and
- (b): Board of Education Finding that the Charter School Could Not be Accommodated at a Single Site and Written Statement of Reasons Explaining the Finding, and Determination of Necessity to Move (if applicable)

Informatives:

Not applicable

Submitted:

12/13/24

RESPECTFULLY SUBMITTED,



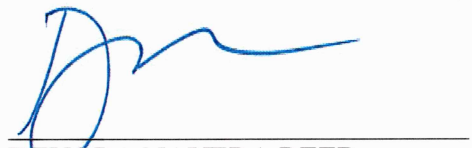
ALBERTO M. CARVALHO
Superintendent

APPROVED & PRESENTED BY:



VERONICA ARREGUIN
Chief Strategy Officer
Office of the Chief Strategy Officer

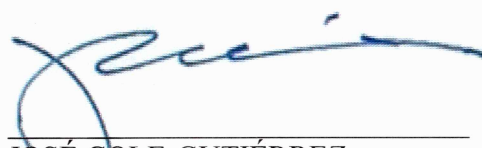
REVIEWED BY:



DEVORA NAVERA REED
General Counsel

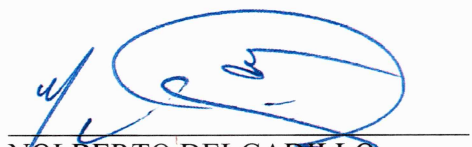
☒ Approved as to form.

APPROVED & PRESENTED BY:



JOSÉ COLE-GUTIÉRREZ
Director
Charter Schools Division

REVIEWED BY:



NOLBERTO DELGADILLO
Deputy Chief Business Officer, Finance

☒ Approved as to budget impact statement.

APPENDIX A

BOARD OF EDUCATION REPORT 170-24/25
January 14, 2025**INDEX OF CHARTER SCHOOLS****Proposition 39 Charter Facilities Compliance for the 2025-26 School Year
Findings and Written Statements of Reasons Why Certain Charter Schools
Cannot be Accommodated on a Single School Site
(and Determination of Necessity to Move (if applicable))**

The charter schools identified below will be accommodated at more than one school site. For each of these charter schools, Appendix B includes Attachments (a) and (b), as follows:

- (a) Staff Report on Deliberative Process for Determining Why the Charter School Cannot be Accommodated at a Single Site;
- (b) Board of Education Finding that the Charter School Cannot be Accommodated at a Single Site and Written Statement of Reasons Explaining the Finding (and Determination of Necessity to Move (if applicable))

ATTACHMENT	CHARTER SCHOOL NAME	DISTRICT SCHOOL SITES	REGION	BD
1	Ararat Charter School	Erwin Elementary	N	6
		Fair Avenue Elementary	N	6
		Kindergarten Learning Academy	N	3
2	Extera Public School	Breed Street Elementary	E	2
		2nd Street Elementary	E	2
3	Gabriella Charter School 2	Trinity Street Elementary	E	5
		West Vernon Avenue Elementary	E	5
4	ISANA Nascent Academy	42nd Street Elementary	S	1
		Barack Obama Global Preparatory Academy	S	1
5	ISANA Octavia Academy	Fletcher Drive Elementary	W	5
		Sonia Sotomayor Arts and Science Magnet	W	5

ATTACHMENT	CHARTER SCHOOL NAME	DISTRICT SCHOOL SITES	REGION	BD
6	ISANA Palmati Academy	Glenwood Elementary	N	6
		Roy Romer Middle School	N	6
7	Lashon Academy	Robert Fulton College Preparatory School	N	6
		Valerio Street Elementary	N	6
8	Stella High Charter Academy	Los Angeles Senior High	W	1
		George Washington Preparatory Senior High	S	1
9	WISH Community School	Orville Wright Engineering & Design Magnet	W	4
		Westchester Enriched Sciences Magnets	W	4

Appendix B:

Attachment for Each Charter School that Cannot be Accommodated on a Single School Site.

Documentation under Appendix B will be available for viewing at the following link:

https://drive.google.com/drive/folders/1fuo78XI3HpJFIrp-E1d_s--M5hBC7PJ4